

The Regulation to Prevent and Combat Child Sexual Abuse (Child Sexual Abuse Regulation, or CSAR) is European Union pending legislation to require digital platforms to assess and mitigate the risk of being used to distribute abuse material or solicit children, enable authorities to remove or block illegal material, and establish a center for regional coordination and victim assistance. It is commonly referred to by critics as Chat Control 2.0 or simply Chat Control.

The legislation is supported by child advocacy groups and most EU member states. While compromises have been reached on most provisions in EU negotiations, there is no agreement on the scope and safeguards for controversial mandatory detection measures. Civil society and privacy activists argue those measures, affecting social media companies and messaging apps, could undermine privacy and data protection through indiscriminate surveillance.

Background

The EU response to child sexual abuse has historically been divided between a 2011 criminal-law directive implemented unevenly by member states, voluntary action by online platforms, and disjoint law-enforcement and victim-support programs. Reviews of the 2011 directive identified implementation gaps, while the Council and Parliament called in late 2019 for more coordinated EU action.

The COVID-19 pandemic intensified concerns by moving schooling and social contact online, increasing the time spent online by both children and offenders, and reducing the capacity of hotlines and law-enforcement bodies. The Commission incorporated the issue into its 2020 Security Union programme, and adopted its strategy for "a more effective fight against child sexual abuse" on 24 July 2020. The strategy brought prevention, enforcement, victim support and digital platform responsibilities into one programme, and proposed temporary and permanent legislation to harmonize and then extend voluntary platform detection practices.

In October 2022, Article 18 of the Digital Services Act introduced requirements for some businesses to report conduct threatening to life or safety in a manner broadly compatible with CSAR, but explicitly stopped short of requiring proactive detection.

Industry practice

Voluntary detection of abuse material by digital platforms dates back at least to the mid-1990s, when AOL manually reviewed suspected abuse material and later developed automated processes. By 2015, the Internet Watch Foundation distributed a fingerprint database created from confirmed abuse material, including images obtained through its own investigations, public and industry reports, and the UK police Child Abuse Image Database. Facebook, Google, Microsoft, Twitter and Yahoo helped trial and implement the service, comparing fingerprints generated from newly uploaded images against the database.

Use of automated systems is widespread but uneven, with existing systems providing inconsistent coverage and oversight. In 2020, Facebook submitted 20.3 million reports to NCMEC, compared with 546,704 from Google, 144,095 from Snapchat, 96,776 from Microsoft and 265 from Apple. In one 2023 survey, only 20 of 50 platforms issued transparency reports, and only 10 defined prohibited abuse material in sufficient detail, limiting assessment of the effectiveness of platforms' measures. Another study concluded substantial differences in the metrics and reporting methods used prevented assessment of effectiveness.

Automated detection

Existing industry practice relies primarily on automated detection technology, of which the most established is perceptual hashing, while some providers use machine learning to detect previously unknown images, and language models to identify grooming.

One of the most widely used perceptual hashing systems is PhotoDNA, developed by Microsoft in 2009. A 2023 analysis of PhotoDNA by Ofcom reported a threshold providing

resistance to alterations produced a false positive rate of 0.3% under the study's conditions. Published performance for other commercial classifiers and grooming detection systems have generally been unavailable.

Of 4,192 reports assessed by Irish police in 2020, 852 were confirmed abuse material while 471 were false positives, illustrating the potential base-rate problem associated with detection at scale. By contrast, a 2025 European Commission review reported that automated detections were "overwhelmingly confirmed" following human review.

ePrivacy derogation

The ePrivacy Directive was adopted in 2002 to protect confidentiality of electronic communication, and extended by the Electronic Communications Code to include interpersonal services like instant messaging in measures that were implemented by December 2020. A temporary derogation was proposed in September 2020 enabling platforms to avoid contravening the updated rules through their existing detection mechanisms. Legal uncertainty around detection mechanisms in late 2020 had resulted in a 58% fall in EU-linked abuse reports to NCMEC over 18 weeks.

The derogation, often referred to by critics as Chat Control 1.0, entered into effect in 2021, allowing digital platforms to resume scanning users' electronic communications for abuse material. Meta actioned 3.6 million items of abuse material involving an EU user under the derogation during 2023, with appeals filed by users in 7% of cases, leading to 4.6% of appealed items being restored after detection errors were found.

On 26 March 2026 Parliament rejected a further extension of the derogation, following sustained opposition from privacy activists, causing it to expire on 3 April 2026. In late June, in a move described as "unacceptable and undermin[ing] the European Parliament position", Roberta Metsola, European Parliament President, reopened the derogation, sending it to the Council, which then sent it back to Parliament at the beginning of the vacation season, where

it was difficult to secure the necessary majority to reject it again. On 7 July 2026, Parliament approved an urgent procedure to consider reinstating it, thus bypassing discussion in the relevant committee, requiring an absolute majority of MEPs to vote against to prevent it from passing. The reinstatement passed a second reading on 9 July 2026, with amendments to exclude services employing end-to-end encryption, in a manner compatible with the state of trilogue negotiations on the permanent legislation. The reinstatement is unenacted as of July 2026. A majority of MEPs present voted against the reinstatement on the second reading, prompting criticism by opponents for the use of an urgent procedure. The temporary reinstatement is set to expire in 2028.

Provisions

In furtherance of its 2020 child sexual abuse strategy, the European Commission proposed draft permanent regulation in May 2022. Parliament adopted a substantially narrower negotiating position in November 2023, limiting detection orders and excluding end-to-end encrypted communications. Successive Council presidencies pursued compromises regarding mandatory detection, encryption and proportionality, before the Danish Presidency removed mandatory detection orders in October 2025.

The Council's November 2025 position retained voluntary detection, and strengthened compulsory risk assessment and mitigation duties. Trilogue negotiations began in December 2025, with detection remaining unresolved as of June 2026.

Definitions, scope and territorial application

The proposal defines known and unknown abuse material, and grooming, definitions later used to determine risks providers must assess and to which its prevention, reporting and enforcement provisions apply. The Council position added risk categories to the assessment framework, with stronger obligations for high-risk services.

Providers of hosting, interpersonal communication, app stores and ISPs anywhere directing service toward the EU are covered, Parliament's position explicitly brought online games into scope.

Non-EU providers must maintain a point of contact within the EU for authorities and the proposed Centre to communicate with, and to support cross-border enforcement.

EU Centre for the Protection of Children from Child Sexual Abuse

The EU currently relies on NCMEC, which has experienced backlogs lasting weeks, to triage reports of suspected abuse occurring in Europe. The proposal establishes a regional Centre to:

receive, via a secure reporting system, reports to be assessed directly within the EU,
reject false positives without need for a material investigation, and notify the originating platform enabling it to improve its detection methods.

route legitimate reports to Europol and any authorities with likely jurisdiction,

maintain databases of known and suspected abuse indicators,

making detection technologies available to providers for free,

serve as a knowledge hub,

support victim assistance,

help law-enforcement authorities act on reports,

issue an annual transparency report on its own performance.

As of June 2026 most provisions concerning the Centre are agreed, except for its authority to conduct its own searches.

Risk assessments, mitigations & reporting

The draft legislation would harmonize industry practice by requiring providers to assess the risk that their services could be misused for abuse, adopt reasonable mitigations, and report

their assessments and mitigation measures to the Centre every 3 months.

Incident reporting

The legislation requires hosting and interpersonal communications providers report potential abuse incidents arising from their own detection, or from any detection order it has received to the Centre immediately. Reporting mandates sufficient information about an incident to be useful to authorities, and information of sufficient quality.

Incident Data Retention

The proposal limits how abuse incident data can be used and retained by platforms:

to improve their detection systems, except where it requires retaining personal data, when blocking or terminating service to an account associated with abuse, related complaints and legal processes, only for as long as strictly necessary, and for no more than 12 months, unless requested by a court, and accessed only for the purposes for which it was originally retained.

Enforcement Measures

Detection orders

A court can issue a detection order against a service where its own efforts have failed to mitigate abuse.

Removal orders

A court can also issue a removal order, requiring a hosting provider or communication service to remove content within 24 hours.

Blocking orders

A blocking order enabled a court to require an ISP prevent access to material that cannot otherwise be removed.

Delisting orders

Search engines can be required to stop surfacing abuse material through a delisting order.

Redress, notice and restoration

Court orders under the legislation can be challenged by the platform itself or by the users it affects.

Penalties and jurisdiction

The legislation introduces enforcement penalties against services:

non-compliance fines up to 6% of worldwide annual income,

fines up to 1% of worldwide annual income for failing to provide, or providing incorrect information,

periodic fines up to 5% of average daily worldwide turnover for continued non-compliance.

Fines must be calibrated to the seriousness and intentionality of the breach, and the size and financial health of the relevant service.

Age verification

The proposed legislation requires app stores to stop children installing apps with a significant risk of grooming.

Private message services are also required to use age verification if their assessment

identified a significant risk of grooming.

Victim rights and assistance

Victims are granted new rights under the proposal to know about incidents involving themselves, to receive support from the Centre, and support to remove abuse material involving them.

User reporting

Providers are required to operate a user-friendly mechanism to flag potential abuse material on their services.

Legislative timeline

11 May 2022 – The European Commission presented its draft legislation.

28 July 2022 – The European Data Protection Supervisor and Data Protection Board issued a joint opinion stating the proposal "could become the basis for de facto generalized and indiscriminate scanning of the content of virtually all types of electronic communications", which could hinder sharing legal content due to the chilling effect.

21 December 2022 – The Economic and Social Committee issued an opinion supporting the proposal's objective, but warned detection measures were disproportionate, risked widespread monitoring of private communications and could weaken privacy and end-to-end encryption.

23 March 2023 – The Swedish Presidency of the Council circulated a new compromise text, 7595/23, substantially reworking the May 2022 proposal and earlier Council drafts.

13 April 2023 – The Parliamentary Research Service published an impact assessment commissioned by the LIBE Committee. It found no available technology could reliably detect abuse material without substantial error rates, and warned teenagers could "feel

uncomfortable when consensually shared images could be classified as abuse material".

26 April 2023 – The Council Legal Service issued an opinion concluding detection orders risked amounting to general and indiscriminate scanning that could seriously interfere with the rights to privacy and protection of personal data under Articles 7 and 8 of the Charter of Fundamental Rights. Drawing on Court of Justice of the European Union jurisprudence, it found a serious risk that the proposed regime would compromise the essence of those rights.

12 October 2023 – The German government proposed splitting the draft regulation into broadly supported provisions and controversial provisions concerning mandatory detection. It proposed addressing detection measures in a separate regulation and extending the temporary derogation while negotiations continued.

14 November 2023 – The LIBE Committee adopted a position limiting detection orders to time-limited, judicially authorized measures of last resort targeting individuals or groups rather than entire services, while excluding end-to-end encryption from their scope.

13 February 2024 – The European Court of Human Rights ruled in an unrelated case that requiring degraded end-to-end encryption "cannot be regarded as necessary in a democratic society". The ruling underlined parliament's decision to protect encrypted communications.

28 May 2024 – The Belgian Presidency circulated a text proposing "upload moderation" and seeking a majority by limiting scanning to images, videos, and URLs and requiring consent before transmission. Users who refused would lose the ability to share files. Critics argued that scanning before encryption still amounted to client-side scanning.

20 June 2024 – The Belgian Presidency abandoned the vote because the proposal lacked the required qualified majority.

12 December 2024 – The Hungarian Presidency's efforts also failed. Hungary continued work on variants of the Belgian approach, but member states remained divided over mandatory detection, encryption, proportionality, and the reliability of scanning technologies.

5 June 2025 – The Polish Presidency explored another compromise centred on risk mitigation

and a narrower detection system, but again failed to assemble a majority. A June 2025 Council progress document recorded continued disagreement over detection obligations and encrypted services.

1 July 2025 – Denmark assumed the presidency, stating in its programme they would "give the work on the Child Sexual Abuse (CSA) Regulation and Directive high priority".

8 October 2025 – The German government confirmed it would not support the Danish proposal, preventing it from reaching the required majority.

30 October 2025 – The Danish Presidency removes mandatory detection orders, circulating a revised text 14092/25 abandoning the obligation to conduct mandatory scanning. It retained voluntary detection, strengthened risk-assessment and mitigation duties, and preserved the proposed EU Centre.

19 November 2025 – Committee of Permanent Representatives endorse the Danish compromise as the basis for final Council approval.

26 November 2025 – European Council adopted its negotiating position. It does not require providers to detect abuse proactively, emphasized compulsory risk assessments and mitigation while making the temporary voluntary-scanning regime permanent.

9 December 2025 – Parliament, Council and Commission begin trilogues.

29 June 2026 – Parliament's negotiating team release a statement indicating negotiations had "managed to reach compromises on almost the entire Regulation", allowing "us to focus on finding balanced solutions on the remaining aspects of the Regulation, in particular on detection, as early as possible".

23 July 2026 – European Council gave final approval to the reinstatement of the derogation.

Trilogue negotiations

Trilogue meetings began after the Council adopted its negotiating position in November 2025.

By April 2026, negotiators had reached consensus on risk assessment, mitigation measures

and reporting, while detection measures remained the focus of debate.

As of July 2026, the principal dispute concerned whether detection by platforms should remain voluntary, or could also be required through targeted detection orders as a measure of last resort. Open questions included which users or groups could be targeted, how they would be identified and the basis for selection. Negotiation also continues on whether detection should cover known material, previously unknown material and the grooming of children. Reporting has indicated agreement that end-to-end encrypted communications should be excluded from detection technologies.

Support

The proposed regulation has been supported by child advocacy groups including the Internet Watch Foundation and members of the ECLAG coalition. In the European Parliament, the European People's Party has been a strong supporter of the proposal.

Criticism

Opponents of the original Commission proposal often highlight its mandatory detection provisions could impose surveillance of digital private communications, and as such refer to it as Chat Control. Some civil society organisations and activists have argued it was incompatible with fundamental rights, infringing on the right to privacy. Opposition has come from many sides of the political spectrum including from left-wing, liberal and right-wing politicians.

In April 2023, Parliament confirmed they had received messages calling to vote against the Commission's proposal.

EU Commissioner Ylva Johansson has been criticised regarding how the proposal was drafted and promoted. A transnational investigation by European media outlets revealed involvement of foreign technology and law enforcement lobbyists in its preparation. This was also highlighted by digital rights organisations, which Johansson rejected to meet on three

occasions. Johansson was also criticised for the use of micro-targeting techniques to promote its controversial draft proposal, which violated the EU's data protection and privacy rules. Some claims criticizing the proposals, such as that governments would be able to read the messages of individuals at will, have been characterized as false or misleading.

Public opinion

A poll released in April 2026 by the Central European Digital Media Observatory found that 58% of respondents across 9 EU states believed the proposal would improve online safety, though only 22% of respondents reported being aware of it. 28% of respondents believed the proposal would threaten freedom of speech.

See also

General Data Protection Regulation (GDPR) – EU privacy regulation

Article 8 of the European Convention on Human Rights § Mass surveillance

Directive on Copyright in the Digital Single Market – EU directive

Online Safety Act 2023 – UK Act of Parliament

Patriot Act – US anti-terrorism and surveillance law

Mass surveillance in China § Internet

References

Citations

Sources

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EPRS (April 2023). "Proposal for a regulation laying down rules to prevent and combat child sexual abuse: Complementary impact assessment" (PDF). europa.eu. Archived from the original (PDF) on 3 June 2023.

LIBE (16 November 2023). "REPORT on the proposal for a regulation of the European Parliament and of the Council laying down rules to prevent and combat child sexual abuse". europa.eu. COM(2022)0209.

External links

Commission Press Release on the regulation

Proposal for a REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL laying down rules to prevent and combat child sexual abuse
consilium.europa.eu: 2022/0155(COD)